

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No:

Date Filed:

-----X

SEEDOULPH JOHN, ANTHONY PAUL,
JAMAUL PEETS and RUTH JOHN,

Plaintiffs,

Plaintiffs designate
KINGS COUNTY
as the place of trial

-against-

The basis of the venue is:
Place where cause of action
arose

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
DAVID GRIECO (Shield # 18061), POLICE
OFFICER ROBERT MAYER (Shield # 18638),
SERGEANT DAMON B. MARTIN (Shield # 4173)
and POLICE OFFICERS JOHN DOE 1-10,

The plaintiffs reside at:
Kings County, New York

Defendants.

-----X

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
April 10, 2017

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.

BY: WALE MOSAKU
Attorney for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

THE CITY OF NEW YORK
C/O New York City Corporation Counsel
100 Church Street
New York, N.Y. 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.
SEEDOULPH JOHN, ANTHONY PAUL,
JAMAUL PEETS and RUTH JOHN,

Plaintiffs,

-against-

COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
DAVID GRIECO (Shield # 18061), POLICE
OFFICER ROBERT MAYER (Shield # 18638),
SERGEANT DAMON B. MARTIN (Shield # 4173)
and POLICE OFFICERS JOHN DOE 1-10,

Defendants.

-----X
SEEDOULPH JOHN, ANTHONY PAUL, JAMAUL PEETS and RUTH JOHN
(hereinafter "plaintiffs"), by their attorney(s), THE LAW OFFICES OF WALE
MOSAKU, P.C., complaining of the defendants THE CITY OF NEW YORK, POLICE
OFFICER DAVID GRIECO (Shield # 18061), POLICE OFFICER ROBERT MAYER
(Shield # 18638), SERGEANT DAMON B. MARTIN (Shield # 4173) and POLICE
OFFICERS JOHN DOE 1-10 (collectively referred to as "the defendants"), upon
information and belief, alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to each plaintiff under color of statute, ordinance, regulation, custom; and/or to redress the deprivation of rights, privileges, and immunities secured to each plaintiff by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. §§ 1982, 1983 and 1985; and arising under the law and statutes of the City and/or State of New York.

THE PARTIES

2. At all times material to this complaint, each plaintiff was, and still is, a resident of the City of New York, who at all times material and

relevant to this complaint resided, and still resides, in Kings County, City and State of New York.

3. At all relevant times, defendants POLICE OFFICER DAVID GRIECO (Shield # 18061), POLICE OFFICER ROBERT MAYER (Shield # 18638), SERGEANT DAMON B. MARTIN (Shield # 4173) and POLICE OFFICERS JOIN DOE 1-10 (collectively referred to as "the defendant officers"), of the New York City Police Department (hereinafter "NYPD"), upon information and belief, were, and still are, law enforcement officers in the employ of the NYPD.
4. At all times herein, the defendant officers were employed as law enforcement officers of the NYPD, and were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York. The defendant officers were the servants, agents, and employees of their co-defendant, the City of New York, so that their acts are imputed to the City of New York and the NYPD.
5. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendant officers, through its Police Department, namely the NYPD, and the actions of the defendant officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.
6. Each plaintiff sues all defendants in their individual and official capacities.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

7. All conditions precedent to filing of this action have been complied with; on August 8, 2016, within ninety days after the claim(s) alleged in this complaint arose, a written notice of claim, sworn to by each plaintiff and/or his/her representative, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to

the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts. Plaintiff Seedoulph John's claim was assigned Claim No. 2016PI023656. Plaintiff Anthony Paul's claim was assigned Claim No. 2016PI023657. Plaintiff Jamaul Peets' claim was assigned Claim No. 2016PI023901. Plaintiff Ruth John's claim was assigned Claim No. 2016PI023658.

8. Subsequently, on October 28, 2016, within ninety days after the malicious prosecution claim(s) alleged in this complaint arose, a written notice of claim, sworn to by each plaintiff and/or his/her representative, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts.
9. At least thirty days have elapsed since the service of the above-mentioned notice of claim, and adjustment or payment of the claim has been neglected or refused.
10. This action, pursuant to New York State and City Law, has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

FACTUAL ALLEGATIONS

11. On or about June 25, 2016, at approximately 01:30 a.m., within the premises described as 644 Hinsdale Street, Brooklyn, N.Y. 11207 ("subject premises") the plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets were unlawfully and wrongfully arrested by the defendant officers.
12. Upon information and well founded belief, at the time of the incident, the defendant officers were executing a search warrant at the adjacent premises to the subject premises.

13. That instead of confining their search to the adjacent premises, the defendant officers decided to extend their search to the garage of the subject premises.
14. That prior to searching the garage of the subject premises, the defendant officers arrested the plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets.
15. That the plaintiff Ruth John protested and demanded that the defendant officers produce a search warrant that would permit them to search the subject premises.
16. That the defendant officers assaulted and battered the plaintiff Ruth John, and forcefully entered into and illegally and unlawfully searched the garage of the subject premises.
17. That during said search, the defendant officers recovered a firearm that was legally registered to the plaintiff Seedoulph John's girlfriend.
18. That the defendant officers then transported the plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets to the 75th precinct, where they were processed, or otherwise fingerprinted and photographed.
19. That the plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets were subsequently transported to "central booking" situated within the Kings County Criminal Courthouse located at 120 Schermerhorn Street, Brooklyn, New York 11201.
20. That the plaintiff Seedoulph John was eventually arraigned in front of a judge, and charged with the following:
 - a. Criminal Possession of a Weapon in the Third Degree [265.02(1)];
 - b. Criminal Possession of a Firearm [265.01-B(1)];
 - c. Criminal Possession of a Weapon in the Fourth Degree [265.01(1)];
 - d. Possession of a Pistol Ammunition [AC 10-131(r)(3)]; and
 - e. Unlawful Possession of Marihuana [221.05].
21. That the plaintiffs Anthony Paul and Jamaul Peets were eventually arraigned in front of a judge, and each charged with the following:

- a. Criminal Possession of a Firearm [265.01-B(1)];
- b. Criminal Possession of a Weapon in the Fourth Degree [265.01(1)];
- c. Possession of a Pistol Ammunition [AC 10-131(r)(3)]; and
- d. Unlawful Possession of Marihuana [221.05].

22. That upon arraignment, bail was set in an amount that the plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets could not afford, and as such the plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets were remanded to the Rikers Island Correctional Facility, where they remained until they were released from custody on June 28, 2016, at approximately 01:30 a.m.

23. That the criminal case(s) against the plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets were dismissed on August 3, 2016.

CAUSE OF ACTION ON BEHALF OF EACH PLAINTIFF: UNLAWFUL
ENTRY/SEARCH UNDER 42 U.S.C § 1983

24. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 23 of this complaint as though fully set forth herein.

25. That the defendant officers unlawfully entered into the subject premises without the plaintiffs permission or consent, even though they did not have a warrant issued by a court of competent jurisdiction that permitted them to do so.

26. Upon unlawfully entering into the subject premises, the defendant officers searched and/or caused each plaintiff and/or his/her property to be searched, without any individualized reasonable suspicion that the plaintiffs were concealing weapons or contraband.

27. As a result of the foregoing, each plaintiff and/or his/her property was/were subjected to an illegal and improper search.

28. The foregoing unlawful search violated each plaintiff's constitutional right to privacy, as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

CAUSE OF ACTION ON BEHALF OF PLAINTIFFS SEEDOULPH JOHN,
ANTHONY PAUL AND JAMAUL PEETS AGAINST THE DEFENDANT
OFFICERS: FALSE ARREST AND FALSE IMPRISONMENT UNDER 42 U.S.C §
1983/NEW YORK STATE LAW

29. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 28 of this complaint as though fully set forth herein.
30. The above-described respective arrest, detention and imprisonment of plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets by the defendant officers were without just or probable cause and without any warrant or legal process directing or authorizing plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets arrest(s) or subsequent detention(s).
31. As a result of plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets above-described false arrest(s) and detention by the defendant officers, said plaintiffs have been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know them, were prevented from attending to their necessary affairs, have been caused to incur legal expenses, and have been otherwise damaged in his character and reputation.
32. Consequently, plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendant officers, individually and severally.
33. The defendant City is vicariously liable for the defendant officers acts as described above.
34. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

CAUSE(S) OF ACTION ON BEHALF OF PLAINTIFFS SEEDOULPH JOIN,
ANTHONY PAUL AND JAMAUL PEETS AGAINST THE DEFENDANT
OFFICERS: MALICIOUS PROSECUTION UNDER 42 U.S.C § 1983/NEW YORK
STATE LAW

35. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 34 of this complaint as though fully set forth herein.
36. The commencement and continued prosecution of the criminal judicial proceeding against plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets, including the arrest, the imprisonment, and the charges against plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets, were committed by or at the insistence of the defendant officers without probable cause or legal justification, and with malice.
37. That the defendant officers were directly involved in the initiation of criminal proceedings against plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets.
38. That the defendant officers lacked probable cause to initiate criminal proceedings against plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets.
39. That the defendant officers acted with malice in initiating criminal proceedings against plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets.
40. That the defendant officers were directly involved in the continuation of criminal proceedings against plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets.
41. That the defendant officers lacked probable cause in continuing criminal proceedings against plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets.

42. That the defendant officers acted with malice in continuing criminal proceedings against plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets.
43. That the defendant officers misrepresented and falsified evidence against plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets throughout all phases of the criminal proceedings.
44. That the defendant officers misrepresented and falsified evidence against plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets to the prosecutors in the Kings County District Attorney's office.
45. That the defendant officers withheld exculpatory evidence from the prosecutors in the Kings County District Attorney's office.
46. That the defendant officers did not make a complete statement of facts to the prosecutors in the Kings County District Attorney's office.
47. The criminal judicial proceeding(s) initiated against plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets were dismissed on August 3, 2016, and terminated in plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets favor.
48. The arrest, imprisonment and prosecution of plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets by the defendant officers was/were malicious and unlawful, because plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets had committed no crime and there was no probable cause to believe that plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets had committed any crimes.
49. The defendant officers' actions were intentional, unwarranted and in violation of the law. The defendant officers had full knowledge that the charges made before the Court against plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets were false and untrue.
50. As a consequence of the malicious prosecution by the defendant officers, plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets

suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and their constitutional rights were violated.

51. Plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets hereby demand compensatory damages and punitive damages, in the amount of to be determined at trial, against the defendant officers and the City of New York, individually and severally.

52. The defendant City is vicariously liable for the defendant officers' acts as described above.

53. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

CAUSE(S) OF ACTION ON BEHALF OF PLAINTIFFS SEEDOULPH JOHN, ANTHONY PAUL AND JAMAUL PEETS AGAINST THE DEFENDANT OFFICERS: DENIAL OF A CONSTITUTIONAL RIGHT TO A FAIR TRIAL UNDER 42 U.S.C § 1983 DUE TO THE FABRICATION OF EVIDENCE

54. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 53 of this complaint as though fully set forth herein.

55. The defendant officers fabricated evidence and/or created false evidence against plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets.

56. The defendant officers fabricated evidence and/or created false evidence that was likely to influence a jury against plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets.

57. The defendant officers forwarded fabricated and false evidence/false information concerning plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets to the prosecutors in the Kings County District Attorney's office.

58. The defendant officers misrepresented and falsified evidence against plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets throughout all phases of the criminal proceeding.

59. The defendant officers misrepresented and falsified evidence against plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets to the prosecutors in the Kings County District Attorney's office.
60. The defendant officers withheld exculpatory evidence from the prosecutors in the Kings County District Attorney's office.
61. The defendant officers did not make a complete statement of facts to the prosecutors in the Kings County District Attorney's office.
62. By creating false evidence against plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets; forwarding false evidence and information to the prosecutors; and by providing false and misleading testimony throughout the criminal proceedings, which directly resulted in plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets being deprived of their liberty, the defendant officers violated against each plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments to the United States Constitution.
63. As a consequence of the defendant officers' actions, plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and their constitutional rights were violated.
64. Each plaintiff hereby demands compensatory damages and punitive damages, in an amount to be determined at trial, against the defendant officers, individually and severally.

CAUSE OF ACTION ON BEHALF OF EACH PLAINTIFF AGAINST THE
DEFENDANT OFFICERS: FAILURE TO INTERVENE UNDER 42 U.S.C § 1983

65. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 64 of this complaint as though fully set forth herein.
66. Each and every individual defendant had an affirmative duty to intervene on each plaintiff's behalf to prevent the violation to his/her constitutional rights, as more fully set forth above.

67. The individual defendants failed to intervene on each plaintiff's behalf to prevent the violation of his/her constitutional rights, despite having had a realistic and reasonable opportunity to do so.
68. As a consequence of said defendants' actions, each plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and his/her constitutional rights were violated. Each plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against each of the defendants, individually and severally.

CAUSE OF ACTION ON BEHALF OF EACH PLAINTIFF AGAINST ALL DEFENDANTS: ASSAULT AND BATTERY

69. Plaintiffs repeat and reallege paragraphs 1 through 68 as if each paragraph is repeated verbatim herein.
70. As set forth above, prior to and subsequent to the unlawful arrests of the plaintiffs Seedoulph John, Anthony Paul and Jamaul Peets, the defendant officers assaulted and battered each plaintiff.
71. Consequently, each plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against the defendants, individually and severally.
72. The defendant City is vicariously liable for the defendant officers acts as described above.

WHEREFORE, each plaintiff prays for judgment against the defendants, individually and severally, as follows: for compensatory damages against each defendant in an amount to be proven at trial; for exemplary and punitive damages against each defendant in an amount to be proven at trial; for costs and expenses of suit herein, including each plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
April 10, 2017

LAW OFFICES OF WALE MOSAKU, P.C.

By:

A handwritten signature in black ink, appearing to read 'Wale Mosaku', is written over a horizontal line.

Wale Mosaku
Attorney for the Plaintiffs
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.
SEEDOULPH JOHN, ANTHONY PAUL,
JAMAUL PEETS and RUTH JOHN,

Plaintiffs,

-against-

ATTORNEY
CERTIFICATION
PURSUANT TO 22 NYCRR
Part 130-1.1(c)

THE CITY OF NEW YORK, POLICE OFFICER
DAVID GRIECO (Shield # 18061), POLICE
OFFICER ROBERT MAYER (Shield # 18638),
SERGEANT DAMON B. MARTIN (Shield # 4173)
and POLICE OFFICERS JOHN DOE 1-10,

Defendants.

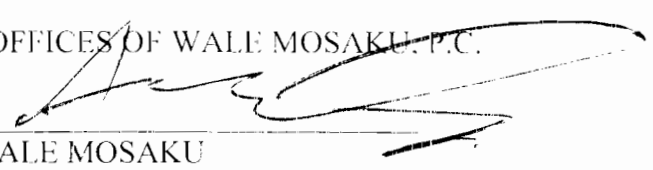
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The undersigned attorney does hereby certify:

That I am the attorney for the plaintiffs and duly admitted to practice law before the
Courts of the State of New York. I do hereby provide this signed certification pursuant to
22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the
Court in this action are not frivolous.

Dated: Brooklyn, New York
April 10, 2017

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.


BY: WALE MOSAKU
Attorney(s) for Plaintiffs
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF KINGS

Index No.:

SEEDOULPH JOHN, ANTHONY PAUL,
JAMAUL PEETS and RUTH JOHN.

Plaintiff(s) ,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
DAVID GRIECO (Shield # 18061), POLICE
OFFICER ROBERT MAYER (Shield # 18638),
SERGEANT DAMON B. MARTIN (Shield # 4173)
and POLICE OFFICERS JOHN DOE 1-10,

Defendant(s) .

SUMMONS AND COMPLAINT

LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

To:

Service of a copy of the within
is hereby admitted.

Dated:..... 200_

Attorneys for Defendant(s)
